

Manoj Saxena v. Managing Director, Paschimanchal Electricity and Others

High Court of Judicature at Allahabad · Division Bench · 27 February 2024 · 2024:AHC:34690-DB · Writ-C No. 37271 of 2023 · **Disposed; decide objection under Supply Code within eight weeks**

HEADNOTE

Writ against a notice of provisional assessment in an electricity-theft case disposed of. If no final assessment order had been passed, respondent no. 2 was directed to decide the petitioner's objection by the procedure prescribed under the Electricity Supply Code, 2005, within eight weeks of communication of the order.

FACTUAL SUMMARY

Manoj Saxena challenged a notice of provisional assessment dated 22 December 2022 issued by respondent no. 2 in a case of theft of electricity. The respondents were the Managing Director, Paschimanchal Electricity, and two others. Saxena had made a representation against the proposed assessment and asked the High Court only to direct the authority to decide it. Counsel for the licensee stated that if no final assessment order had yet been passed, respondent no. 2 would examine the objection and decide the matter.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

objection to provisional assessment in a theft case

HOLDING

If a final assessment order has not been passed, the authority that issued a notice of provisional assessment in a theft-of-electricity case must decide the consumer's objection by following the procedure prescribed under the Electricity Supply Code, 2005, within eight weeks of communication of the order. The writ is disposed of on that direction, without a decision on the assessment. ¶ 3-4

FLAG Order cites the Electricity Supply Code, 2005 and no numbered clause; clause is not corrected or inferred.

PRINCIPLE TAGS

objection-to-provisional-assessment-decided-under-supply-code The Court did not adjudicate the theft assessment. On the licensee's statement, it directed respondent no. 2, if no final assessment had been passed, to decide the objection under the Supply Code, 2005 procedure within eight weeks. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A FINAL ASSESSMENT ORDER HAD ALREADY BEEN PASSED

The direction operates only if final assessment has not been passed. ¶ 3-4

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT AND OF THE PETITIONER'S OBJECTION

Left to respondent no. 2 to decide under the prescribed procedure. ¶ 2-4